Appendix C2 to the General Conditions of Tender

(General Conditions of Tender Clause GCT 19(2))

Letter of Indemnity
(For Incorporated Joint Venture)

To : The Government of the Hong Kong Special Administrative Region

From : [ ]

Date : [ ]

Dear Sirs,

Letter of Indemnity for Contract No. HY/2022/14

Contract Title : Modification Works of Noise Barriers along Yuen Long Highway near Park Signature

We refer to the tender ("the tender") submitted to you by [ ] ("the tenderer"), for the above Contract.

In consideration of your agreeing to consider the tender we hereby irrevocably and unconditionally agree to indemnify you against all losses, liabilities, damages, costs, legal costs, professional and other expenses of any nature whatsoever which you have incurred or suffered as a result of the violation of General Condition of Tender Clause GCT 19(2) by the tenderer and/or any person authorized or licensed by the tenderer. We agree that we shall be jointly and severally liable for our obligations under this letter of indemnity and all references to "we" shall take effect as references to all of us or any of us and the words "us" and "our" shall be construed accordingly. We hereby represent that, with respect to our obligations, liabilities or any other matter under or arising out of or in connection with this letter of indemnity, neither we nor any of our properties or assets have, in the Hong Kong Special Administrative Region, or in any other jurisdiction, any right of immunity on the grounds of sovereignty or otherwise from any legal action, suit or proceedings; from the giving of relief in any legal action, suit or proceedings; from set-off or counterclaim; from the jurisdiction of any court, in the Hong Kong Special Administrative Region or in any other jurisdiction; from service of process upon us or any agent; from attachment prior to judgment in order to obtain satisfaction thereof; from attachment after judgment or from execution or any other process for the endorsement of any judgment or other legal process in any jurisdiction; and to the extent that we are or become entitled to any immunity as aforesaid, in the Hong Kong Special Administrative Region or in any other jurisdiction with respect to our obligations, liabilities or any other matter under or arising out of or in connection with this letter of indemnity, we hereby and will irrevocably and unconditionally waive and agree not to plead or claim any such immunity. We further consent to the giving of any relief in any legal action, suit or proceeding and to execution and or any other form of process for the enforcement of any judgment against us or our assets.

[We acknowledge that we comprise all the shareholders of (name of the tenderer).]

This letter of indemnity shall be governed by and construed in all respects according to the laws for the time being in force in the Hong Kong Special Administrative Region and I/we hereby submit to the non-exclusive jurisdiction of the courts of the Hong Kong Special Administrative Region and irrevocably appoint the tenderer to act as our duly appointed agent for the service of process at the address shown in the tender.

(a) # SIGNED, SEALED and DELIVERED)
by [name of participant] being a participant)
of the [name of the incorporated joint venture])
in the presence of:)
)
)
)
)
……....)
[Name])
[Occupation])
[Address])

[Signature of the participant][1]

L.S.

(b) # SIGNED, SEALED and DELIVERED)
by [name of partner] and [name of partner][3])
being the partners of [name of participant])
being a participant)
of the [name of the incorporated joint venture])
in the presence of:)
)
)
)
……....)
[Name])
[Occupation])
[Address])

[Signature of the individual partner][1]

L.S.

[Signature of the individual partner][1]

L.S.

(c) #Executed and delivered)
as a deed and the COMMON SEAL)
of [name of Participant] being a participant)
of the [name of the incorporated joint venture])
was affixed in the presence of:)
[ ] its [director(s) or)
director and secretary or person(s))
authorized to sign the contract by its)
board of directors][2])
in the presence of a witness:)
)
)
)
…….…...)
[Name])
[Occupation])
[Address])

[Signature of the director(s) etc][1]

Common Seal

(d) #Executed and delivered)
as a deed)
by [name of participant] being a participant)
of the [name of the incorporated joint venture])
acting through)
[ ] (its sole director))
or)
[ ] and [ ] (its directors))
or) *[Signature of the*
[ ] (its director) and) *director(s) etc]*[1]
[ ] (its company secretary)[2])
)
in the presence of a witness:)
)
)
)
……..)
[Name])
[Occupation])
[Address])

(e) #SIGNED, SEALED AND DELIVERED)
by [name of participant] being a participant)
of the [name of the incorporated joint venture])
by [ ])
his/her/its[2] attorney under the power of attorney)
dated [ ]) *[Signature of the attorney]*[1] L.S.
)
in the presence of:)
)
)
)
……..)
[Name])
[Occupation])
[Address])

Notes: (for preparation of but not inclusion in the engrossment of these Articles of Agreement)

(a) For use where the joint venture participant is a sole proprietor.
(b) For use where the joint venture participant is a partnership.
(c) For use where the joint venture participant is a company incorporated in Hong Kong and executes the deed with a Common Seal.
(d) For use where the joint venture participant is a company incorporated in Hong Kong and executes the deed without a Common Seal.
(e) For use where the joint venture participant executes the deed under a power of attorney.

[*] For use where the tenderer is an incorporated joint venture.

Select the appropriate form or forms and REPEAT FOR EACH PARTICIPANT of the incorporated joint venture.

[1] The italic parts are not part of the execution clause. They are for guidance or information only.

[2] Select the correct expression for use. If none are applicable, insert and appropriate expression.

[3] The deed shall be executed by all partners. Add more names if required.